

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harold Rodriguez	Team: Squad #01	CCRB Case #: 201806991	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 08/23/2018 8:14 PM	Location of Incident: § 87(2)(b) 46th Pct Stationhouse; Bronx Central Booking		18 Mo. SOL 2/23/2020		Precinct: 46
Date/Time CV Reported Fri, 08/24/2018 6:58 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 08/24/2018 6:58 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			046 PCT
2. SGT Edmund Otoo	03972	925868	BX CT
3. POM Thomas Geberth	07948	957649	046 PCT
4. POM Thomas Casey	18749	950169	046 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Eric Bernard	19619	958308	046 PCT
2. SDS Franklin Bohr	02618	892920	INT CIS
3. POM Valdrin Nikqi	07009	954177	046 PCT
4. POM Nicholas Kourounis	28949	954029	046 PCT
5. POM Manolis Kambouris	11618	961850	046 PCT
6. POM Nicholaos Coumbouris	01354	933716	046 PCT
7. POM Martin Kuhl	26	956812	046 PCT
8. POM Gladwin Sato	28937	965514	046 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Thomas Geberth	Abuse: At § 87(2)(b) in the Bronx, Police Officer Thomas Geberth stopped § 87(2)(b)	A . Substantiated
B . POM Thomas Casey	Abuse: At § 87(2)(b) in the Bronx, Police Officer Thomas Casey stopped § 87(2)(b)	B . Miscellaneous - Subject Resigned
C . POM Thomas Geberth	Abuse: At § 87(2)(b) in the Bronx, Police Officer Thomas Geberth frisked § 87(2)(b)	C . Unsubstantiated
D . POM Thomas Casey	Abuse: At § 87(2)(b) in the Bronx, Police Officer Thomas Casey frisked § 87(2)(b)	D . Miscellaneous - Subject Resigned
E . POM Thomas Geberth	Abuse: At § 87(2)(b) in the Bronx, Police Officer Thomas Geberth detained § 87(2)(b)	E . Unsubstantiated
F . POM Thomas Casey	Abuse: At § 87(2)(b) in the Bronx, Police Officer Thomas Casey detained § 87(2)(b)	F . Miscellaneous - Subject Resigned
G . POM Thomas Geberth	Abuse: At § 87(2)(b) in the Bronx, Police Officer Thomas Geberth searched § 87(2)(b)	G . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
H . POM Thomas Geberth	Abuse: At § 87(2)(b) in the Bronx, Police Officer Thomas Geberth strip-searched § 87(2)(b)	H . Unsubstantiated
I . Officers	Abuse: Officers entered § 87(2)(b) in the Bronx.	I . Exonerated
J . Officers	Abuse: Officers searched § 87(2)(b) in the Bronx.	J . Exonerated
K . POM Thomas Geberth	Abuse: At the 46th Precinct Stationhouse, Police Officer Thomas Geberth strip-searched § 87(2)(b)	K . Unsubstantiated
L . SGT Edmund Otoo	Abuse: At Bronx Central Booking, Sergeant Edmund Otoo forcibly removed § 87(2)(b) to the hospital.	L . Exonerated

Case Summary

§ 87(2)(b) called the CCRB on August 24, 2018 and filed the following complaint on behalf of his friend, § 87(2)(b). § 87(2)(b) did not witness the incident.

On August 23, 2018, at approximately 8:14p.m., PO Thomas Geberth and PO Thomas Casey, assigned to the 46th Precinct, stopped § 87(2)(b) and placed him in handcuffs (**Allegation A – Abuse of Authority: Substantiated**) (**Allegation B – Abuse of Authority: Miscellaneous-Subject Resigned**). PO Geberth and PO Casey frisked § 87(2)(b) (**Allegation C – Abuse of Authority-Unsubstantiated**) (**Allegation D – Abuse of Authority: Miscellaneous-Subject Resigned**) PO Geberth and PO Casey placed § 87(2)(b) into their unmarked vehicle and drove to § 87(2)(b) which is approximately half a block away from § 87(2)(b)'s home (**Allegation E – Abuse of Authority: Unsubstantiated**) (**Allegation F – Abuse of Authority: Miscellaneous-Subject Resigned**). PO Geberth then allegedly retrieved two bags of marijuana from § 87(2)(b)'s underwear waistband (**Allegation G – Abuse of Authority: Unsubstantiated**). PO Geberth then allegedly took § 87(2)(b) out of the vehicle, pulled down his jeans and retrieved a bag of crack cocaine from the underwear waistband (**Allegation H – Abuse of Authority: Unsubstantiated**). Officers from the 46th Precinct executed a search warrant at § 87(2)(b)'s house (**Allegations I and J – Abuse of Authority: Exonerated**). PO Geberth and PO Casey took § 87(2)(b) to the 46th Precinct stationhouse and PO Geberth allegedly strip searched him in a private bathroom (**Allegation K – Abuse of Authority: Unsubstantiated**). While at Bronx Central Booking, Sgt. Edmund Otoo, assigned to that command, had § 87(2)(b) removed to a hospital (**Allegation L – Abuse of Authority: Exonerated**).

There is one cell phone video associated with this case. The source is in question and it is blurry (Board Review 01).

Findings and Recommendations

Allegation (A) Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer Thomas Geberth stopped § 87(2)(b)

Allegation (B) Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer Thomas Casey stopped § 87(2)(b)

Allegation (C) Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer Thomas Geberth frisked § 87(2)(b)

Allegation (D) Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer Thomas Casey frisked § 87(2)(b)

§ 87(2)(b) stated that he was standing in front of § 87(2)(b) (approximately three and a half blocks from his home - § 87(2)(b) with a friend who he refused to identify. Two officers, identified through the investigation as PO Geberth and PO Casey, drove up in an unmarked vehicle. They approached § 87(2)(b) and told him that he had an open warrant, placed him in handcuffs, patted him down around his legs, and placed him into their unmarked vehicle. Nothing illegal was recovered.

§ 87(2)(b)'s father, § 87(2)(b) § 87(2)(b) testified that during the subsequent execution of the search warrant on his home, he asked Sgt. Franklin Bohr where § 87(2)(b) was and Sgt. Bohr replied that he had been arrested for having a “blade” on him.

PO Geberth testified that he and several officers in several unmarked vehicles conducted reconnaissance in the area prior to the search warrant execution. They drove around looking for routes to the nearest hospital and observed the perimeter of the location. He was aware that § 87(2)(b) was subject of the search warrant though did not know whether § 87(2)(b) was named in the warrant. While driving around, one of the officers in the vehicle observed § 87(2)(b) what he believed was about a block from the search warrant location. PO Geberth recognized § 87(2)(b) because he was known to the precinct from his prior arrests. Officers handcuffed § 87(2)(b) because they did not want him to return to his house and move evidence after seeing the officers

driving around. PO Geberth did not recall if he made any observations that led him to believe that § 87(2)(b) was getting suspicious of the officers driving around. He did not recall whose decision it was to stop § 87(2)(b). PO Geberth also could not recall if he made any observations that led him to believe that § 87(2)(b) may have had a weapon on his person. PO Geberth did not know who frisked § 87(2)(b) but stated that a knife was recovered. PO Geberth stated that he was not the officer who recovered the knife.

PO Bernard, § 87(2)(b)'s arresting officer, was not present for § 87(2)(b)'s stop but learned of it via point-to-point radio. He was not informed that a weapon was found. PO Bernard stated that § 87(2)(b) was the subject of the search warrant, however was not listed on the warrant due to confidentiality issues.

PO Casey resigned from the NYPD as of November 1, 2018. Therefore, he did not provide a statement to the CCRB.

The cell phone video of the incident begins just before § 87(2)(b) is led to the police vehicle and no frisk is observed (Board Review 01). However, it confirms the incident location provided by § 87(2)(b) approximately three and a half blocks from his home (Board Review 15).

The search warrant for this incident (Board Review 02) does not name § 87(2)(b) or any other individual as a subject. It states that officers were to search the entire premises and connect persons found therein to the premises. § 87(2)(e), § 87(2)(f)

§ 87(2)(b) The warrant objectives note that the officers were to look for weapons but did not have the option of "person" checked off. § 87(2)(b)'s arrest report (Board Review 03) had no charge for a knife and no property vouchers for the knife exist.

NYS Criminal Procedure Law (CPL) 690.05, defines search warrants as: a court order and process directing a police officer to conduct:

(a) a search of designated premises, or of a designated vehicle, or of a designated person, for the purpose of seizing designated property or kinds of property, and to deliver any property so obtained to the court which issued the warrant; or

(b) a search of a designated premises for the purpose of searching for and arresting a person who is the subject of a warrant of arrest (Board Review 06).

According to People v. DeBour 40 N.Y. 2d 210 (1976), an officer can stop a person when the officer has reasonable suspicion that the person has committed, is committing, or is about to commit a crime. Additionally, the officers can frisk a suspect if they have reasonable suspicion that the suspect is armed (Board Review 04).

§ 87(2)(g)

It is therefore recommended that **Allegation A be closed as**

Substantiated.

§ 87(2)(g)

it is recommended that **Allegation C be closed as Unsubstantiated.**

Since PO Casey resigned from the NYPD, it is recommended that **Allegations B and D be closed as Miscellaneous-Subject Resigned.**

Allegation (E) Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer Thomas Geberth detained § 87(2)(b)

Allegation (F) Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer Thomas Casey detained § 87(2)(b)

§ 87(2)(b) alleged that after finding nothing during his frisk, PO Geberth and PO Casey drove him to the end of § 87(2)(b), which is a dead end near his house. § 87(2)(b) remained in the vehicle while officers executed a search warrant at his house.

While PO Geberth did not recall transporting § 87(2)(b) to the dead end, he testified that after a knife was found on § 87(2)(b) during the initial stop, he was considered under arrest. § 87(2)(b) recalled that Sgt. Bohl told him that § 87(2)(b) was under arrest for a knife.

§ 87(2)(g)

It is therefore recommended that **Allegation E be closed as Unsubstantiated and Allegation F be closed as Miscellaneous-Subject Resigned.**

Allegation (G) Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer Thomas Geberth searched § 87(2)(b)

Allegation (H) Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer Thomas Geberth strip-searched § 87(2)(b)

While parked at the dead end, and still seated in the back of the vehicle, § 87(2)(b) alleged that the same officer who stopped him (PO Geberth) reached from the front passenger's seat and searched the waistband of his underwear to discover two bags of marijuana. § 87(2)(b) only described one search inside the vehicle and no other officer entered the vehicle. PO Geberth then made § 87(2)(b) get out of the vehicle. After he was out of the vehicle, PO Geberth pulled § 87(2)(b)'s jeans down and searched the underwear waistband again, finding a bag of crack cocaine.

According to his testimony, PO Geberth transported § 87(2)(b) to the 46th Precinct stationhouse, though he could not recall if they went there immediately. He denied reaching into § 87(2)(b)'s underwear and stated that he was not searched inside the vehicle. He also denied that he or any other officer strip-searched § 87(2)(b). He did not recall whether any narcotics were recovered.

PO Bernard testified that he was involved in the search warrant execution and discovered drug paraphernalia with crack residue within § 87(2)(b)'s bedroom. After the search warrant execution at § 87(2)(b)'s home, he went to the vehicle where § 87(2)(b) sat with PO Geberth and PO Casey. PO Bernard entered the back seat and patted down § 87(2)(b)'s waistband outside of his pants and near the belt buckle as he was under arrest in connection with the search warrant. PO Bernard felt a bag that seemed to have other smaller bags in it. He was able to pull the bag out through the top of the waistband without having to go into the waistband of the pants. The bag ended up being a bag containing smaller bags of crack cocaine. PO Bernard denied strip-searching § 87(2)(b) outside of the car and denied seeing any other officer do so.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations G and H be closed as Unsubstantiated.**

Allegation (I) Abuse of Authority: Officers entered § 87(2)(g) in the Bronx.

Allegation (J) Abuse of Authority: Officers searched § 87(2)(g) in the Bronx.

It is undisputed that officers entered and searched § 87(2)(b) apartment pursuant to a search warrant.

Search warrant § 87(2)(b) (Board Review 02) was signed on § 87(2)(b), by the § 87(2)(b) and was executed on the same day, resulting in the arrest of § 87(2)(b) and the recovery of ziplocks of marijuana, a marijuana cigarette, and ziplocks of crack cocaine.

As per Criminal Procedure Law 690.05 (Board Review 06), officers may forcibly enter and search a location for which they have a valid search warrant.

§ 87(2)(g)

Therefore, it is recommended that **Allegations I and J be Exonerated.**

Allegation (K) Abuse of Authority: At the 46th Precinct Stationhouse, Police Officer Thomas Geberth strip-searched § 87(2)(b)

§ 87(2)(b) alleged that he was brought to the stationhouse and was brought into a private bathroom by PO Geberth. PO Geberth had him remove his clothes, squat and cough. Nothing was recovered. There were no other officers or civilians who witnessed this.

PO Geberth denied that he strip-searched § 87(2)(b) at the stationhouse, and never requested permission to do so.

The 46th Precinct command log (Board Review 07) has nothing noted that § 87(2)(b) was strip-searched. Additionally, § 87(2)(b)'s arrest report (Board Review 03) notes that § 87(2)(b) was not strip-searched.

§ 87(2)(g)

It is therefore recommended that **Allegation K be closed as Unsubstantiated.**

Allegation (L) Abuse of Authority: At Bronx Central Booking, Sergeant Edmund Otoo forcibly removed § 87(2)(b) to the hospital.

§ 87(2)(b) stated that he was in the holding cells at Bronx Central Booking and constantly asked Sgt. Otoo why his paperwork took so long. Sgt. Otoo told § 87(2)(b) that he was talking too much and if he did not stop, he would be taken out of the building. § 87(2)(b) continued speaking and was subsequently removed to a hospital.

Sgt. Otoo had no recollection of this incident. PO Gladwin Sato, who escorted § 87(2)(b) to § 87(2)(b), stated that § 87(2)(b) screamed, acted irate, and intentionally clogged one of the toilets in the holding cells. Due to this behavior, the supervisor at the front desk made the decision to have § 87(2)(b) removed to the hospital as an emotionally disturbed person (EDP). § 87(2)(b) fought with hospital staff, § 87(2)(b)

Sgt. Otoo noted in the arraignment history form for § 87(2)(b)'s arrest that he was disruptive and refused to comply with Department of Correction personnel. It is also noted that officers placed § 87(2)(b) in leg restraints (Board Review 08).

§ 87(2)(a) PHL § 18(6)

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Patrol Guide Procedure 221-13 notes that officers may remove a person to a hospital if they believe the person is apparently mentally ill, emotionally disturbed or conducts in a manner that will likely result in serious injury to themselves or others (Board Review 10).

§ 87(2)(g)

it is recommended that
Allegation L be closed as Exonerated.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
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- Police Officer Thomas Geberth has been a member of service for four years and has been the subject in four other CCRB complaints and 12 allegations, of which one was substantiated. CCRB number 201901129 involved a substantiated allegation of discourtesy against PO Geberth. The board recommended command level instructions. The NYPD has not reached a disposition. § 87(2)(g)
- PO Thomas Casey resigned from the NYPD on November 1, 2018 (Board Review 13)
- Police Officer Eric Bernard has been a member of service for four years and has been a subject in six other CCRB complaints and 20 allegations, of which one was substantiated. CCRB number 201602498 involved a substantiated allegation of an entry against PO Bernard. The board recommended formalized training and the NYPD took no disciplinary action. § 87(2)(g)
- Sergeant Edmund Otoo has been a member of service for 19 years and has been a subject in four CCRB complaints, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- As of November 21, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (Board Review 14).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date